

RESOLUTION OF TERMINATION OF THE PROCEDURE BY VOLUNTARY PAYMENT

From the procedure instructed by the Spanish Agency for Data Protection and based on the following
BACKGROUND

FIRST: On January 8, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against TOTALENERGIES CLIENTES, S.A. (hereinafter, the respondent), through the Agreement that is transcribed below:

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AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following
FACTS

FIRST: A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on December 18, 2022. The complaint is directed against TOTALENERGIES CLIENTES, S.A. with NIF A95000295 (hereinafter, the respondent). The reasons on which the complaint is based are as follows:

The claimant states that a data crossover occurred when registering for the gas supply service in their home with the respondent. They assert that their personal data has been associated with that of a third party who was carrying out the same procedure. They indicate that the personal data of the third party (name, surname, postal address, and bank account) appears in the contract signed for the gas supply of the claimant's residence, where the only correct data are the supply address, ID number, phone number, and email address.

For evidentiary purposes, the complaint is accompanied by the contract entered into with the respondent, which includes both the claimant's data and that of a third party, as well as an email sent by the respondent to the third party.

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SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on February 7, 2023, as recorded in the acknowledgment of receipt in the file.

On March 7, 2023, this Agency received a written response from the respondent. The entity's response indicates that there are no records of the claimant in relation to the mentioned gas supply contract.

Furthermore, they state that they do not sell natural gas and, therefore, could not have established a supply contract for this service with the claimant. They assert that, after receiving the information request and conducting the relevant investigations, the entity sent a letter to the claimant to inform them of the actions taken and confirm the absence of data regarding the gas supply contract in their systems. They attach a copy of this letter as a reference document.

THIRD: On March 18, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: The General Sub-Directorate of Data Inspection proceeded to carry out preliminary

investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the details that are subsequently exposed. The claimant reported a problem of crossover of personal data with that of a third party when contracting the gas supply service at their home with the respondent, which occurred on December 12, 2022. In that writing, they state that, upon registering for the service, their personal data was mixed with that of another customer in a similar process. In the contract submitted along with the complaint, incorrect data such as the name, surname, postal address, and bank account of a third party are recorded, with only their supply address, ID number, phone number, and email address being correct. For its part, the respondent, in its initial response to this authority, denied the existence of incorrect data in its systems, arguing that they do not sell natural gas. However, after a more in-depth investigation, they acknowledged a human error in the manual data entry process, which resulted in the aforementioned crossover of information. They indicate that, although the third party's data was erroneously associated with the claimant's profile, no contract was activated for the third party and, therefore, they did not have access to the claimant's data. They assert that

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The entity proceeded to send a letter to the claimant explaining the reasons for the incident and the actions taken to resolve it. Additionally, it includes details about the update of the gas supply billing and maintenance service, proceeding to annul the erroneously issued invoices and reissuing them with the correct data.

It is hereby acknowledged by this authority that, prior to the filing of the complaint, the claimant had submitted another complaint to the Municipal Consumer Information Office of the ***LOCALITY.1, which was forwarded to the responding party on January 24, 2023, and answered on February 17, 2023. In the response to that transfer, the entity detailed the actions taken to resolve the incident and expressed apologies for the inconveniences caused.

As additional documentation submitted by the responding party, a record of the interactions between it and the claimant is included. From this, it is observed that the claimant had contacted the entity several times, starting on November 7, 2022, to report the incident consisting of the discrepancy in the data and to express dissatisfaction with the slowness of the procedures. It was through this first communication that the responding party became aware of the incident suffered by the claimant. The company maintained regular communication with the claimant, both by phone and electronically, to confirm data and update the situation.

Finally, on February 13, 2023, the entity corrected the erroneous data in its internal systems, ensuring the disconnection between the third party's data and that of the claimant, as well as the accuracy of the data in the claimant's customer area, thus resolving the incident.

FIFTH: According to the report collected from the AXESOR tool, the entity TOTALENERGIES CLIENTES, S.A. is a large company, with a turnover of €1,700,272,000 million in the year 2022.

LEGAL GROUNDS

I

Jurisdiction

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic

law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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II

Breach of Obligation under Article 5.1 f) GDPR

According to paragraph 1.f) of Article 5 GDPR, data must be "processed in a manner that ensures an adequate level of security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, by applying appropriate technical or organizational measures ('integrity and confidentiality')."

Similarly, Recital 39 GDPR states that: "Personal data should be processed in a manner that ensures adequate security and confidentiality of personal data, including to prevent unauthorized access or use of such data and the equipment used for processing."

The principle of confidentiality, according to the aforementioned Article 5.1 f) of the GDPR, requires the protection of personal data against unauthorized access, use, and disclosure. This principle is essential to ensure the security of personal data, constituting a key pillar in the protection of the fundamental right in this area. Conversely, the violation of this principle can have unintended consequences, reflecting its importance within the regulatory framework of data protection.

In the present case, from the investigative actions carried out, an incident is observed consisting of the fact that the personal data of the complainant were cross-referenced with those of a third party in a contract during the registration process for a supply service carried out by the responding party. This situation, without prejudice to what may result throughout the instruction of the procedure, represents an alleged breach of the principles of integrity and confidentiality of personal data, as stipulated in the aforementioned Article 5.1 f) of the GDPR and in the terms that are subsequently outlined.

Firstly, it is worth noting that Article 4 defines personal data as "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

The act of incorrectly associating personal data of a third party, such as name, surname, postal address, and bank account, with the contract and profile of the complainant results in certain data being exposed to unauthorized persons. In this case, the improper cross-referencing of information involved the unauthorized exposure of the personal data of a third party. In this regard, the severity of the incident in this case lies in the implications it has had, both for the complainant and for the third party.

In the case of the complainant, the appearance of a third party's data in their contract not only generated confusion but also jeopardized the security of their own data.

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personal data, as it pertains to erroneous and potentially compromising information. The fact that, as claimed by the respondent, there was ultimately no impact on their data does not negate the fact that the data was at risk of being improperly processed during a certain period of time. It is worth noting that it was the claimant, and not the respondent, who reported the incident, which led to the rectification of the incident and, consequently, to the mitigation or cessation of the risk.

Regarding the third party affected, the incorporation of their personal data into another person's contract without their consent constituted, therefore, a presumed violation of the principle of confidentiality, given that the claimant became aware of such personal data, which they were not

authorized to access, as indicated in the claim itself and inferred from the previous actions taken by this entity.

In conclusion, the incident in question represents a presumed violation of the principle of confidentiality, as defined in Article 5.1 f) of the GDPR. The confidentiality of personal data is a fundamental pillar of data protection, and its infringement in this case is manifested in the unauthorized exposure and improper use of a third party after being erroneously incorporated into the contract of the respondent.

III

Classification and qualification of the infringement of Article 5.1.f) of the GDPR

If confirmed, the aforementioned infringement of Article 5.1.f) of the GDPR could constitute the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount: a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements," establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 72 "Very serious infringements" of the LOPDGDD indicates:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall prescribe after three years, which involve a substantial violation of the articles mentioned therein, and in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

IV

Sanction for the infringement of Article 5.1.f) of the GDPR

According to Article 83.2 of the GDPR, "Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;

e) any previous infringement committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with those measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

Similarly, Article 76 of the LOPDGDD establishes a series of criteria for assessing the possible sanction, following the provisions of paragraph k) of the previous article:

"In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The ongoing nature of the infringement.
- b) The link of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.

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d) The possibility that the conduct of the affected party may have induced the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) To have, when not mandatory, a data protection officer.

h) The voluntary submission by the responsible party or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party."

Taking into account these provisions, in the present case it is considered appropriate to adjust the sanction to be imposed in the following terms:

Possible aggravating factor provided for in section a) of Article 83.2 of the GDPR:

"a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damage and harm they have suffered;"

The presence of the possible aggravating factor is evident in the nature of the infringement, given that the facts have affected certain data, such as banking and contact information, the exposure of which increased the risk of misuse and fraud. Furthermore, the infringement is aggravated by the context in which it occurs, as it took place in a contractual environment, where individuals trust the entity for the secure handling of their personal information, leading to an erosion of trust and expectations of the affected parties regarding the processing of their personal data.

Possible aggravating factor provided for in section b) of Article 76 of the LOPDGDD:

"b) The connection of the infringer's activity with the processing of personal data."

The application of this possible aggravating factor arises from the sector in which the complained party operates, consisting of energy supply, which involves the management of a significant amount of personal data of its customers, including sensitive and detailed information related to billing and consumption. This circumstance amplifies the potential negative impact and risk for the affected individuals whose data has been exposed.

No mitigating circumstances are observed.

Based on the aforementioned circumstances, in accordance with the provisions of Article 83.5 of the GDPR, and without prejudice to the outcome of the instruction of this procedure, it is considered appropriate to set a possible sanction of a fine in the amount of €140,000 (ONE HUNDRED FORTY THOUSAND EUROS)

V

Article 32 of the GDPR

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Article 32 "Security of Processing" of the GDPR establishes:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context,

and purposes of the processing, as well as the varying probability and severity of risks to the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular attention shall be paid to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data on instructions from the controller, unless required to do so by Union or Member State law.”

It is necessary to point out that the aforementioned provision does not establish a list of specific security measures according to the data being processed, but rather establishes the obligation for the controller and the processor to implement technical and organizational measures that are appropriate to the risk posed by the processing, taking into account the state of the art, the costs of implementation, the nature, scope, context, and purposes of the processing, and the probability and severity of risks to the rights and freedoms of the data subjects.

Furthermore, the security measures must be adequate and proportionate to the identified risk, determining those appropriate technical and organizational measures considering pseudonymization and encryption, the ability to ensure confidentiality, integrity, availability, and resilience, the ability to restore availability and access to data after an incident, and the process of verification (which is not an audit), assessment, and evaluation of the effectiveness of the measures.

In any case, in assessing the appropriateness of the level of security, particular attention must be paid to the risks presented by the processing of data, such as

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as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data that could cause physical, material, or immaterial harm.

For its part, Recital 83 of the GDPR states that “(83) In order to maintain security and prevent processing from infringing the provisions of this Regulation, the controller or the processor must assess the inherent risks of processing and implement measures to mitigate them, such as encryption. These measures must ensure an adequate level of security, including confidentiality, taking into account the state of the art and the cost of their implementation in relation to the risks and the nature of the personal data that must be protected. When assessing the risk in relation to data security, the risks arising from the processing of personal data must be considered, such as the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data, particularly those that could cause physical, material, or immaterial harm.”

In the present case, the occurrence of the incident involving the cross-referencing of personal data

between the claimant and a third party implies a possible failure to adopt effective technical and organizational measures to ensure an adequate level of security. It should be noted that the data that may be processed by the defendant involves sensitive and personal information, including numerous identifying data, addresses, and banking details. The nature of such data requires a high level of protection due to its potential impact on individuals' rights. Conversely, the failure to adopt adequate measures exposes individuals to significant risks, such as fraud or identity theft.

In this regard, the data controller must take into account the specific risks associated with the alteration, loss, unauthorized access, or cross-referencing of personal data as occurred in the present case. The lack of measures to prevent data cross-referencing indicates a possible failure in risk assessment, and the defendant should have evaluated and mitigated these risks.

On the other hand, it is essential to consider the nature of the operations of the defendant entity and its impact on compliance with data protection obligations, taking into account that it periodically processes a considerable amount of personal data. This perspective is relevant due to the scale and regularity of personal data processing, which increases the risk and, consequently, the expectations of compliance by the responsible entity. The regularity with which the company processes personal data requires a robust and updated data protection system, as any failure can have repeated or prolonged effects, regardless of whether the failure is of human origin or of any other nature.

In this regard, in order to prevent human errors in the handling of personal data, as occurs in the present case, an entity may adopt various effective measures of different kinds. Thus, without intending to be exhaustive, continuous training and awareness of staff, automated verification and validation of data at the time of entry, the implementation of double-check procedures...

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Verification for tasks, the anomaly detection technology that automatically alerts about inconsistencies or irregularities, along with other measures deemed appropriate and implemented comprehensively, can significantly strengthen the protection of personal data and compliance with the GDPR.

Finally, it is worth highlighting the manner in which the respondent became aware of the incident, which came directly from the affected individual, and not through its own detection systems or internal control procedures. This fact further underscores the lack of adoption of security measures appropriate to the risk. The respondent's inability to identify and proactively address the error on its own demonstrates a significant deficiency in its internal supervision and auditing mechanisms, reinforcing the need to implement systems for continuous review and control, not only to prevent errors but also to detect and rectify them in a timely manner, thereby ensuring compliance with the GDPR.

In summary, the human error consisting of a cross-referencing of personal data could have been avoided if the entity had adopted the appropriate security measures. On the contrary, the occurrence of the incident subject to the claim highlights the lack of adoption of relevant and effective technical and organizational measures to ensure an adequate level of security relative to the risk, which entails a presumed breach of the aforementioned Article 32 of the GDPR, without prejudice to the findings throughout this procedure.

VI

Classification and qualification of the infringement of Article 32 of the GDPR

If confirmed, the aforementioned infringement of Article 32 of the GDPR could constitute the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be subject to administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those

contrary to this organic law, constitute infringements."

For the purposes of the limitation period, Article 73 "Infringements considered serious" of the LOPDGDD indicates: "In accordance with what is established in Article 83.4 of Regulation (EU) 2016/679, the following infringements are considered serious and shall be subject to a limitation period of two years, which involve a substantial breach of the articles mentioned therein and, in particular, the following:

(...) f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security appropriate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679.

VII

Possible sanction for the infringement of Article 32 of the GDPR

In the terms indicated by the aforementioned Article 83.4 of the GDPR, the infringement of Article 32 shall be sanctioned "with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to 2% of the total annual global turnover of the previous financial year, opting for the higher amount."

Furthermore, in the present case, it is considered appropriate to graduate the sanction to be imposed according to the criteria previously established:

As a possible aggravating factor, the one provided for in paragraph b) of Article 76 LOPDGDD is foreseen:

Possible aggravating factor provided for in paragraph b) of Article 83.2 of the GDPR:

b) the intentionality or negligence in the infringement;

In this case, serious negligence can be appreciated on the part of the respondent. In this sense, the Supreme Court has understood that there is recklessness whenever a legal duty of care is disregarded, that is, when the offender does not behave with the required diligence. In assessing the degree of diligence, the professionalism or lack thereof of the subject must be particularly weighed, and there is no doubt that, in the case now examined, given that the activity of the appellant involves constant and abundant management of personal data, a greater rigor and exquisite care is required to comply with legal provisions.

b) The connection of the infringer's activity with the processing of personal data

In this case, considering the volume of personal data managed by the respondent due to the sector in which it operates, it entails a greater responsibility regarding the implementation of security systems. The failure to establish adequate security measures in this area amplifies the significant risk of unauthorized access, manipulation, or loss of data, from which the concurrence of this possible aggravating factor arises.

No mitigating circumstances are appreciated.

Taking into account the general conditions for the imposition of administrative fines established by the aforementioned Article 83.2 of the GDPR, considering the circumstances of the present case and without prejudice to the findings of the instruction of this procedure, a possible sanction of a fine in the amount of €60,000 (SIXTY THOUSAND EUROS) is proposed.

VIII

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Adoption of Measures

If the infringement is confirmed, it may be agreed to impose on the responsible party the adoption of appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

In this case, the responsible party may be required to notify this authority within three months of the adoption of the following measures:

- Adopt appropriate organizational and technical measures to ensure an adequate level of security relative to the risk in order to prevent future human errors, including detection mechanisms that allow for the quick identification and correction of any human error that may occur, thereby minimizing its impact.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in light of the above, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO INITIATE SANCTIONING PROCEDURE against TOTALENERGIES CLIENTES, S.A., with NIF A95000295, for the alleged infringement of Article 5.1.f) of the GDPR and Article 32 of the GDPR, classified under Article 83.5 of the GDPR and Article 83.4 of the GDPR.

SECOND: TO APPOINT B.B.B. as instructor and C.C.C. as secretary, indicating that they may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate for Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, without prejudice to what results from the instruction:

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- For the alleged infringement of Article 5.1.f) of the GDPR, classified under Article 83.5 of that regulation, an administrative fine of 140,000.00 euros

- For the alleged infringement of Article 32 of the GDPR, classified under Article 83.4 of that regulation, an administrative fine of 60,000.00 euros

The sum of both amounts totals 200,000 € (TWO HUNDRED THOUSAND EUROS).

FIFTH: TO NOTIFY this agreement to TOTALENERGIES CLIENTES, S.A., with NIF A95000295, granting a hearing period of ten working days for them to submit allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the file number indicated in the heading of this document.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for submitting allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 160,000.00 euros, resolving the procedure with the imposition of this sanction.

Similarly, they may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 160,000.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment is made within the period

granted to submit allegations to the initiation of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 120,000.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

Furthermore, in order to prevent further infringements of the same nature, the acknowledgment of responsibility and the consequent application of the aforementioned reduction will imply the acceptance, if applicable, of the measures to be adopted as proposed and indicated by this entity in the present agreement.

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In the event that you choose to proceed with the voluntary payment of any of the amounts previously indicated (160,000.00 euros or 120,000.00 euros), you must make the payment by depositing it into account no. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

You must also send the proof of payment to the General Sub-Directorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the agreement to initiate. After this period, if no resolution has been issued and notified, it will expire, and consequently, the proceedings will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

In accordance with the provisions of Article 76.4 of the LOPDGDD, if the amount of the imposed sanction exceeds one million euros, the information identifying the offender, the infringement committed, and the amount of the imposed sanction will be published in the Official State Gazette.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On January 31, 2024, the respondent has proceeded to pay the sanction in the amount of 120,000 euros, making use of the two reductions provided for in the previously transcribed Agreement of initiation, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or administrative appeal against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Agreement of Initiation.

FOURTH: In the Agreement of initiation transcribed above, it was indicated that, if the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...".

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Having acknowledged the responsibility for the infringement, the imposition of the measures included

in the Agreement of initiation is appropriate.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides the following:

- "1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent body to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which will be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned on the withdrawal or waiver of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

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In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202301331, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER TOTAENERGIES CLIENTES, S.A. to notify the Agency within 3 months from the date this resolution becomes final and enforceable, of the adoption of the measures described in the legal grounds of the initiation Agreement transcribed in this resolution.

THIRD: TO NOTIFY this resolution to TOTAENERGIES CLIENTES, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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